

TO: S. Kadinger
FROM: Link Dooley
RE: J.J.: Reckless homicide waiver and plea
DATE: April 17, 2026

MEMORANDUM

Assignment: Based off of the information found in the Client File and Lexis research, please write a memorandum analyzing whether we are likely to defeat a motion to waive jurisdiction, focusing on the following questions:

QUESTIONS PRESENTED:

1. Under Indiana Code § 35-42-1-5, is the evidence sufficient to prove that John Johnson committed the offense of Reckless Homicide against Karen Greg?
2. Under Indiana Code § 31-30-3-5, is the evidence sufficient to establish that John Johnson should be waived of juvenile jurisdiction?

BRIEF ANSWERS:

1. Probably yes. Despite Johnson's lack of awareness of the potential harm of Greg's vehicle, by driving nearly double the posted speed limit at night in severe weather, and by failing to stop at a red light, the evidence is probably sufficient to convict Johnson of Reckless Homicide.
2. Probably not. Although the statutory criteria establish a presumption of waiver, and although the Juvenile Court would likely be prohibited from remitting Johnson to the Indiana Department of Corrections, Johnson's complete lack of any prior criminal record and demonstrated positive involvement in his community are likely to overcome the presumption of waiver.

STATEMENT OF FACTS:

On Saturday, January 24, 2026, at approximately 12:30 a.m., John Johnson ("Johnson"), born February 2nd, 2009, aged sixteen (16) years old, was driving southbound on East Westfield Boulevard ("Westfield") during a winter storm that caused road conditions to be hazardous, and limited visibility. While Westfield had a speed limit of 35 miles per hour, Johnson was travelling at approximately 50 to 60 miles per hour, significantly exceeding the speed limit. Johnson approached the intersection of Westfield and Kessler Boulevard West Drive ("Kessler"), intending to execute a right-hand turn onto Kessler. However, the traffic light at the intersection was red. Johnson reduced his speed, but did not come to a complete stop at the light, and, upon entering the intersection, lost control of his vehicle and collided with a vehicle operated by Karen Greg ("Greg"). Greg, born March 17, 1962, age sixty-two (62), was pronounced dead at the scene.

Johnson stated to officers that he looked for oncoming traffic but never saw Greg's vehicle. The police report reflects that Greg's headlights were off, and subsequent investigation of Greg's vehicle established that the headlight system was functional - meaning Greg had failed to activate her headlights while driving. Greg had no prior criminal history and no negative marks on her driving record, but had consumed at least two (2) glasses of wine before driving that night.

Following the collision, Johnson consented to a breathalyzer examination, which returned a reading of 0.00 for alcohol. However, officers observed that Johnson's eyes were red, that he appeared anxious and, "out of it" and detected an odor of marijuana on Johnson's person. Johnson was arrested and charged with Operating a Vehicle While Intoxicated, Resulting in Death, a Level 4 Felony under Ind. Code § 9-30-5-1(c) and 9-30-5-5(a)(2), and Reckless Homicide, a Level 5 Felony under Ind. Code § 35-42-1-5, At his initial hearing, the Court found probable cause as to both charges. Johnson is an honor-roll student and serves as captain of the Varsity basketball team, a member of the Mock Trial Team, and as the Junior Representative for Student Government,. He comes from a stable household, and has no prior history of delinquent conduct or contact with the justice system.

ANALYSIS (ISSUE 1):

I. RULE OF LAW:

Indiana Code provides that, “A person engages in conduct recklessly if that person engages in the conduct in plain, conscious, and unjustifiable disregard of harm that might result and the disregard involves a substantial deviation from acceptable standards of conduct.” Ind. Code § 35-41-2-2(c) (2025). Such conduct will support a conviction for reckless homicide if it results in the death of another person. Ind. Code § 35-42-1-5 (2025).

II. CASE LAW:

The State does not need to prove the person acted intentionally, but merely that the person realized or should have realized there was a strong probability that the harm might occur. *Wallace v. State*, 558 N.E.2d 864, 866 (Ind. Ct. App. 1990), (citing *Miller v. State*, 449 N.E.2d 1119, (Ind. Ct. App. 1983)).

It is well settled that, “in certain circumstances, operating a motor vehicle at an ‘unreasonably high rate of speed’ may be sufficient to support a conviction of Reckless Driving.” *Taylor v. State*, 457 N.E.2d 594, 598 (Ind. Ct. App. 1983). In *Taylor*, the Indiana Court of Appeals considered whether evidence that the defendant was driving approximately forty miles per hour over the speed limit was sufficient to establish recklessness for purposes of reckless homicide. *Id.* Taylor was driving at approximately seventy miles per hour on a road where the speed limit was thirty miles per hour, ran a stop sign, and collided with a vehicle, killing both occupants. *Id.* at 596-97. The Court of Appeals held that the general intent necessary for reckless homicide is “a choice of action, either with the knowledge of serious danger to others involved therein or with the knowledge of facts which would disclose danger to a reasonable person.” *Id.* at 598. The dangerousness of Taylor's conduct was exacerbated by the fact that the pavement was wet. *Id.* However, the Court of Appeals clarified that while operating a vehicle at an “unreasonably high rate of speed” under circumstances that endanger

others may be sufficient to establish recklessness, mere failure to adhere to the speed limit does not necessarily constitute recklessness. *Id.* A slight deviation does not create a great risk of danger, and some violations may be due to inadvertence. *Id.* However, concluding that neither proposition could apply given the “substantial differential” between Taylor’s speed and the posted limit, and because Taylor offered no justification for his speed, nor any claim that his speeding was involuntary, the court held the evidence was sufficient to support the conviction of reckless homicide. *Id.* at 598-99.

Additionally, this case considerably parallels *Warner v. State*, 577 N.E.2d 267 (Ind. Ct. App. 1991). In *Warner*, the Indiana Court of Appeals considered whether the evidence was sufficient to prove the offense of reckless homicide when the defendant was speeding and driving erratically in hazardous conditions. *Id.* at 269. Warner was driving on a four-lane street on a snowy day when he attempted to pass another vehicle, lost control after accelerating and abruptly changing lanes, crossed the center line, and struck a van, ultimately killing a passenger. *Id.* Although the speed limit was thirty-five miles per hour, witnesses estimated Warner’s speed at forty to fifty miles per hour, and a police officer testified that snow and ice had created slick and hazardous conditions making the maximum safe speed only twenty miles per hour. *Id.* Witnesses described Warner swerving through traffic and abruptly accelerating, while all other motorists in the area were traveling between twenty and twenty-five miles per hour. *Id.* The court concluded that Warner’s conduct--driving at speeds more than double the maximum safe speed in hazardous winter conditions, swerving through traffic, and abruptly accelerating while attempting to pass other vehicles--was not merely negligent but constituted a substantial deviation from acceptable standards of conduct and affirmed the conviction. *Id.* at 269-70.

“Mere negligence of the appellant is not enough to sustain a conviction of reckless homicide.” *Boswell v. State*, 238 N.E.2d 283, 285 (Ind. 1968) (citing *Beeman v. State*, 115 N. E. 2d 919 (Ind. 1953)). “To sustain a conviction of Reckless Homicide, there must be evidence of probative value supporting each of three elements[:] causation, that the act resulting in the homicide was voluntary, and that the defendant's conduct was reckless and not merely negligent.” *Gibbs v. State*, 677 N.E.2d 1106, 1108-09 (Ind. Ct. App. 1997) (citing *Taylor* at 597)).

III. APPLICATION OF LAW:

The evidence is probably sufficient to prove that Johnson acted recklessly, considering the totality of the circumstances, the likelihood that harm might occur, and the deviation from acceptable standards of conduct.

The State is likely to prove that driving nearly double the posted speed limit in hazardous conditions with limited visibility and failing to stop at a red light constitute a substantial deviation from acceptable standards of conduct. Here, like in *Taylor*, Johnson can give no justification for his speed, nor argue that it was involuntary. While Johnson was not swerving through traffic nor abruptly accelerating as in *Werner*, the State will almost certainly argue that Johnson should have been aware that the snow and ice had created hazardous conditions, and deciding to drive nearly double the posted speed limit in hazardous conditions late at night was done, “in plain, conscious, and unjustifiable disregard of harm that might result and involve[d] a substantial deviation from acceptable standards of conduct.”

IV. COUNTER ANALYSIS:

While a counterargument can be made that Johnson was unaware of the potential harm, and therefore acted negligently rather than recklessly, it is probably unlikely to succeed.

The Indiana Court of Appeals established that an individual cannot be reckless, “with regard to a potential harm unknown to them.” *Wallace v. State*, 558 N.E.2d 864, 866, (Ind. Ct. App. 1990). In *Wallace*, a truck driver’s conviction for Reckless Driving was overturned because recklessness is not a specific intent crime but requires proof that the defendant realized or should have realized there was a strong probability of harm. *Id.* at 865-66. The Indiana Court of Appeals distinguished recklessness from negligence, reasoning that Wallace could not be reckless because his sole intent was to change lanes, and he had no knowledge of the other vehicle’s presence. *Id.*

Here, as in *Wallace*, the potential harm was unknown to Johnson. Johnson had surveyed the intersection prior to entering it, but was unable to see Greg’s vehicle, because Greg was driving without headlights at night in hazardous conditions that limited visibility.

Therefore, an argument can be made that because Johnson had no knowledge of Greg’s presence, and because Johnson could not have realized there was a strong probability of harm, Johnson only acted negligently rather than recklessly, which precludes a conviction for Reckless Homicide.

However, the State will likely rebut this argument and take the position that Johnson’s actions were inherently reckless *per se*.

ANALYSIS (ISSUE 2):

I. RULE OF LAW:

Indiana Code provides that the Motion for Waiver shall be granted if the trial court finds probable cause for the charge of reckless homicide, and the child was at least sixteen (16) years of age when the charge occurred, unless it would be in the best interests of the child and of the safety and welfare of the community for the child to remain within the juvenile justice system. Ind. Code § 31-30-3-5 (2025).

II. CASE LAW:

There is a presumption in favor of waiver when the State's evidence satisfies these statutory prerequisites. *Moore v. State*, 723 N.E.2d 442, 446 (Ind. Ct. App. 2000) (citing *Hagan v. State*, 682 N.E.2d 1292, 1295 (Ind. Ct. App. 1996)).

The burden to present evidence that waiver is not in the best interests of the juvenile or the safety and welfare of the community remains at all times upon the juvenile seeking to avoid waiver. *Villalon v. State*, 956 N.E.2d 697, 705 (Ind. Ct. App. 2011) (citing *Hagan* at 1295).

Additionally, the nature of the offense, whether it is part of a repetitive pattern of juvenile offenses, whether the child is beyond rehabilitation under the juvenile justice system, and whether waiver is necessary to protect the public security is relevant to a determination of what is in the best interest of the child and the safety and welfare of the community. *Clemons v. State*, 317 N.E.2d 859, 863 (Ind. Ct. App. 1974). In *Clemons*, the Indiana Court of Appeals considered whether there was sufficient evidence to support the Juvenile Court's order waiving jurisdiction over a seventeen-year-old charged with first degree burglary, transportation of stolen property across state lines, and possession of false selective service registration cards. *Id.* at 64. Clemons had an extensive record of prior offenses, including vandalism, theft, assault and battery, possession of stolen property, and vehicle taking. *Id.* Previous attempts to rehabilitate Clemons within the juvenile justice system had been unsuccessful. *Id.* The court explained that the standards governing the Juvenile Court's waiver

determination are derived from the purpose of the juvenile justice system itself - to secure for each child such care, guidance, and control as will serve the child's welfare and the best interests of the State. *Id.* at 63. In applying this standard, the court held that the Juvenile Court judge must necessarily consider: (1) the nature of the offense, (2) whether it is part of a repetitive pattern of juvenile offenses, (3) whether the child is beyond rehabilitation under the juvenile justice system, and (4) whether waiver is necessary to protect the public security. *Id.* Because the reasons for waiver demonstrated that rehabilitation had been unsuccessful, the Indiana Court of Appeals affirmed the judgment of the trial court. *Id.*

Further, this case is similar to *State v. D.R.*, 119 N.E.3d 1060 (Ind. Ct. App. 2019). In *D.R.*, the Indiana Court of Appeals considered whether the Juvenile Court abused its discretion in denying the State's motion to waive juvenile jurisdiction over a seventeen-year-old charged with reckless homicide and operating a vehicle with a controlled substance in his blood resulting in death. *Id.* at 1062. D.R. had crossed the center line at a high rate of speed, and struck another car head-on, killing its driver. *Id.* In evaluating D.R.'s circumstances, a psychologist who evaluated D.R. recommended he remain in Juvenile Court, specifically noting his “thoughtfulness” and recommending intensive individual therapy in a residential placement. *Id.* at 1065. Further, the Juvenile Court considered that D.R. had no prior juvenile record, had been working two jobs, and had begun pursuing his GED. *Id.* at 1066. Testimony also established that the juvenile system could provide D.R. with more effective supervision and rehabilitation services than the adult system, where a felony conviction could impede his ability to become a productive member of society. *Id.* The Court of Appeals held that due to D.R.'s complete lack of a juvenile record, and the Juvenile Court’s capacity to effectively address the serious allegations, the Juvenile Court’s determination that D.R. overcame the presumption of waiver was not against the facts and circumstances of the case, and the denial of waiver was affirmed. *Id.*

III. APPLICATION OF LAW:

The evidence is probably insufficient to establish that Johnson should be waived of juvenile jurisdiction due to Johnson's complete lack of any criminal record and demonstrated positive involvement with his community.

Here, because the statutory prerequisites are satisfied, there is a presumption in favor of waiver. Therefore, the burden shifts to Johnson to present evidence demonstrating that waiver is not in his best interests, nor the best interests of the safety and welfare of the community. However, like in *D.R.*, Johnson can probably overcome this burden.

Namely, Johnson lacks any criminal record, and has demonstrated positive community involvement as an honor-roll student, as captain of his school's Varsity basketball team, as a member of his school's Mock Trial team, and as a Junior Representative for Student Government. Further, if the Juvenile Court retained jurisdiction over Johnson, Johnson could be more intensively supervised, and kept on probation until age twenty-one (21). In contrast, a felony conviction would almost certainly impede Johnson's ability to obtain a job, and become a productive member of society.

IV. COUNTER ANALYSIS:

The State will likely argue that Johnson should be waived of juvenile jurisdiction because the Juvenile Court would be prohibited from remitting Johnson to the Indiana Department of Corrections.

Here, because Johnson is only nine (9) days away from his seventeenth (17) birthday, and assuming *arguendo* that Johnson is adjudicated as a delinquent, and that the Juvenile Court would take remedial actions against Johnson, and that such proceedings would take at least one (1) year (making Johnson at least eighteen (18) years old), the Juvenile Court would be prohibited from remitting Johnson to the Indiana Department of Corrections. See Ind. Code § 31-37-19-7 (2025).

As such, the state will likely draw a comparison to *Hagan*, where the Indiana Court of Appeals considered whether the Juvenile Court abused its discretion in granting the State's motion to waive juvenile jurisdiction over a seventeen-year-old charged with two counts of burglary and two counts of theft. *Id.* at 1293. At the waiver hearing, the State established the necessary statutory elements creating the presumption of waiver. *Id.* at 1294. Then, the burden shifted to Hagan, who presented testimony from schoolteachers, coaches, a psychologist, and his parents, all of whom testified that it was in his best interests and the community's best interests for him to remain in Juvenile Court. *Id.* This evidence included Hagan's improvement in GPA from 2.5 to 3.6, his compliance with home detention, and his progress in counseling. *Id.* The State presented no rebuttal evidence. *Id.*

Even with the lack of rebuttal evidence, the trial court held that the, “best interests of the child and the safety and welfare of the community” language in the statute is a consideration, not an element, and noted that Hagan was over seventeen at the time of the offenses, and would have turned eighteen before he could have been adjudicated delinquent and before the Juvenile Court could have taken remedial action. *Id.* at 1295-96. Reasoning that because the Juvenile Court cannot incarcerate a child beyond his eighteenth birthday, and because the Juvenile Court would have been left without the sanction of incarceration to further Hagan's rehabilitation (even though it could retain jurisdiction until age twenty-one), the Court of Appeals affirmed that waiver from Juvenile Court was proper. *Id.*

CONCLUSION:

The evidence is probably sufficient to prove that Johnson committed the offense of Reckless Homicide because Johnson was driving nearly double the posted speed limit in hazardous conditions, and failed to stop at a red light. However, the evidence is probably insufficient to establish that Johnson should be waived of juvenile jurisdiction because of his lack of criminal record and positive involvement with his community. Therefore, we should reject the plea agreement and send a counteroffer.

WORD COUNT CERTIFICATE:

I, Link Edward Dooley, certify that I have performed a word count, and that this paper contains [3,000] words.

/s/ Link Edward Dooley

Link Edward Dooley

Date: April 17, 2026

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My signature below certifies that I have followed IU Indianapolis' policy on academic integrity outlined in the Student Code, and the specific instructions for this assignment. I affirm that memorandum represents my own work without the use of any unpermitted aids or resources, including, but not limited to Generative AI or other AI tools.

/s/ Link Edward Dooley

Link Edward Dooley

Date: April 17, 2026

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I understand this consent applies only to this specific assignment and may be revoked in writing at any time.

/s/ Link Edward Dooley

Link Edward Dooley

Date: April 17, 2026